

CONTRACT AGREEMENT 2021-2022

The agreement is made between:

PARTY A: FUSION RESORT PHU QUOC (LAN ANH PHU QUOC JSC)		PARTY B:	
Address:	Group 4, Village 4, Cua Can Ward, Phu Quoc, Kien Giang Province, Vietnam	Address:	
Telephone:	84 297 369 0000	Telephone:	
Fax:	84 297 377 1111	Fax:	
Email:	reservations.frpq@fusionhotelgroup.com	Email:	
Representative:	Mr. PEDRO MIGUEL OLIVEIRA NETO	Representative:	
Title:	General Manager	Title:	

Validity: 01 November 2021 – 31 October 2022
Market: All (excluding Korea)
Currency: VND
Rate basis: per room per night

Room type	Occupancy (Existing bedding)	High season	Peak season	Low season
	A=adult C=child under 6	01 Nov 2021 – 19 Dec 2021 09 Jan 2022 – 29 Jan 2022 09 Feb 2022 – 27 Apr 2022 01 Oct 2022 – 31 Oct 2022	20 Dec 2021 – 08 Jan 2022 30 Jan 2022 – 08 Feb 2022 28 Apr 2022 – 03 May 2022	04 May 2022 - 30 Sep 2022
Pool Villa 1BR	2A+1C	11,115,000	13,455,000	7,781,000
Pool Villa River 1BR	2A+1C	13,244,000	15,584,000	9,271,000
Pool Villa Ocean 1BR	2A+1C	18,931,000	21,271,000	13,251,000
Pool Villa River 2BR	4A + 2C	18,931,000	21,271,000	13,251,000
Pool Villa Ocean 2BR	4A + 2C	25,787,000	28,127,000	18,051,000
Pool Villa River 3BR	6A + 3C	25,787,000	28,127,000	18,051,000
Pool Villa Ocean 3BR	6A + 3C	41,067,000	43,407,000	28,747,000
Grand Beach Villa 5BR	9A + 4C	Upon request	Upon request	Upon request
Presidential River Villa 5BR	9A + 4C	Upon request	Upon request	Upon request

Conditions:

- * Above contracted rates are in Vietnam Dong (VND) and inclusive of service charge (5%) and applicable value added tax (10%).
- * Rates are non-commissionable and based on per room per night.
- * Rates include bed, breakfast and **minimum 2 spa treatments** per night per adult - up to 02 people for Villa 01 bedroom, up to 04 people for Villa 02 bedrooms, and up to 06 people for Villa 03 bedrooms and up to 09 people for Villa 05 bedrooms.
- * GIT rates (>= 10 rooms) are available upon request.
- * Allotments are subject to request for all FIT bookings and contracted by separate annex with respective terms and conditions.
- * Booking must mention code of market or tour operator's name for reference.
- * Hotel reserves/affirms the obligation of the contract partner to charge a **MINIMUM MARK-UP 10%** on this contracted rate to Tour operator, international wholesaler and others.
- * **Partner is required to clearly display the SPA INCLUSIVE offer in their brochure and marketing collaterals.**

Minimum Stay:

- * Bookings received for stay on 30, 31 December 2021 and 01, 02 Jan 2022 will be confirmed with a minimum 3 nights stay.

Special offers:

- * Bonus night: Stay 4, pay 3 and based on contract rate (NOT COMBINABLE).
- * Early Bird 14 Days: Bookings reserved 14 days in advance of arrival will receive a 20% discount on room rates (NOT COMBINABLE).
- * Early Bird 30 Days: Bookings reserved 30 days in advance of arrival will receive a 30% discount on room rates (NOT COMBINABLE).
 - ✓ Early bird/ Bonus night offer can be applied to extra bed; but cannot be applied to meal plans.
 - ✓ Bonus night can be multiplied.
 - ✓ **Bonus night and Early bird offer can NOT apply to Peak season**
 - ✓ The special offer must be promoted and listed on catalogue/brochure/flyer of tour operators and copy to resort for reference.

Added value benefits:

1. **Minimum 2 spa treatments included in the room rate**
2. **Complimentary scheduled shuttle bus for airport transfer (round trip). Any transfer out of the schedule is chargeable.**
3. Daily breakfast anytime and anyplace
4. Complimentary yoga and tai chi class
5. Healthy welcome drink upon arrival
6. Welcome amenity in room upon arrival
7. Free Wi-Fi internet access

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Meal rate:

Meal rates per person	From 12 years old +	From 6 - under 12 years old
Half Board (Set menu)	VND 1,053,000	VND 538,000
Full Board (Set menu)	VND 1,755,000	VND 889,000
Compulsory Gala dinner 31 Dec	VND 4,423,000	VND 2,223,000

* Children under 6 years old: charged as child menu rates.

Distribution of Contracts:

- Contract Rates are valid for bundled, packaged or brochure international leisure business only. Contract rates are only valid for bona fide Tour Operators.
- Contract rates cannot be offered by the Tour Operator direct to the consumer via the Internet, or by any other internet channels, through owned, affiliated or subsidiary companies, without prior written approval from the hotel.
- The Contract rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution retailing via the Internet.

Children and Extra Bed Policy:

- * Baby cot is complimentary upon request and subject to availability, for baby up to 2 years old.
- * Only 1 extra bed is accepted per room
- * Maximum one (1) child per room under 6 years old is complimentary when sharing parents' room and utilizing existing bed.
- * Children from 06 years to under 12 years old is compulsory extra bed with breakfast at VND 1,170,000 net per night
- * Children from 12 years to under 16 years old is compulsory extra bed with breakfast at VND 1,521,000 net per night.
- * Children from 16 years and older will be charged extra bed at VND 2,106,000 net per night including breakfast and spa treatments.
- * Children under 16 years old are not allowed to use the spa.

Cancellation Policy:

The company shall notify the hotel in writing of any cancellation prior to the minimum notice period. In the event of late notification, a cancellation charge will apply

* High season: 01 November 2021 – 19 December 2021 and 09 January 2022 – 29 January 2022 and 09 February 2022 – 27 April 2022 and 01 October 2022 – 31 October 2022
Cancellation 30 days prior to arrival date: at no charge. Less than 30 days prior to arrival: full charge for the entire stay.

* Peak season: 20 December 2021 – 08 January 2022 and 30 January 2022 - 08 February 2022 and 28 April 2022 – 03 May 2022
Cancellation within 60 days prior to arrival: Full charge for entire stay.

* Low season: 04 May 2022 - 30 September 2022
Cancellation 14 days prior to arrival date at no charge. Cancellation within 14 days prior to arrival full charge for entire stay.

All cancellation must be informed in writing and have to be acknowledged by the resort. In the event of a non-arrival on the scheduled date, the company shall be held responsible for payment computed as the equivalent for the full length of stay.

The cancellation policy does not apply to group booking (>= 10 rooms) and it will be informed in confirmation letter later.

Payment:

Full payment must be received at least 14 days prior to arrival for bookings in low season and at least 30 days prior to arrival for bookings in high season and at least 60 days prior to arrival for bookings in peak season.

Once credit had been approved, the company is required to settle the account due to the hotel within 30 days of the invoice date. Should the company fail to settle the accounts within the said credit period, the hotel reserves the right to withdraw the credit facilities.

The hotel also reserves the right to refuse any new bookings on a credit basis until all outstanding accounts are settled.

Invoice paid after the credit period will attract interest at 1.5% per month. After 60 days bookings may not be honored or credit will be recalled and new bookings need to be settled 72 hours prior to arrival.

Bank transfer fees will be the responsibility of the booking agent.

Bank account details:

Account name: LAN ANH - PHU QUOC JOINT STOCK COMPANY
Account number: 116002620531 (VND)
115002620532 (USD)
Bank name: Vietnam Joint Stock Commercial Bank for Industry and Trade – Kien Giang branch (Vietinbank – Kien Giang branch)
Bank address: D11-5B, 3/2 street, Vinh Lac ward, Rach Gia city, Kien Giang province
Swift code: ICBVNVX840

Terms and conditions:

This contract is subject to terms & conditions, which are an integral part of the contract.

- Rates must be packaged and not applicable or to be distributed on internet.
- Allotments are subject to request for all FIT bookings and contracted by separate annex with respective terms and conditions.
- Room rates for group, series, incentive, corporate meeting, trade delegation and convention groups are available upon request.
- There are no black-out dates or fixed restrictions at the time of contracting, however the hotel reserves the right to impose additional black-out dates.

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5. Check-in time is 14:00. Before 06:00, full night charge will be applied. From 06:00 to 10:00, 50% of the room rate will be charged, from 10:00 to 14:00, 30% of room rate will be charged.
Check-out time is 12:00 noon. From 12:00 noon to 18:00, 50% of room rate will be charged and after 18:00 full night charge will be applied. Hotel may offer complimentary late check-out up to 14:00; however, this is subject to availability and at the hotel discretion.
6. Booking amendments: Changes in booking must be notified 14 days in advance during low season and 30 days in high season and 60 days in peak season. Unused room nights are not refundable for early departure. If room nights can be re-sold, these cancellation fees may be waived, subject to hotel discretion.
Extension of stay is subject to space and rate availability.
7. Approved vouchers should accompany individual arrivals unless a prior arrangement has been agreed in writing.
8. All prices are quoted in Vietnam Dong (VND) and agreed payment can be made in any of the following forms: Bank Draft, Bank Notes, Money Order or Telegraphic Transfer.
9. All room reservations are subject to availability and confirmation unless allocations have been confirmed.
10. The hotel must be featured as a 5 star category hotel. Text and images need to be approved and proof read by the hotel before publishing. Any hotel visuals presented should be made only the signed and dated approval and vetting from our side. Any default in any clause of this agreement shall result in immediate termination of this agreement. Wholesaler, tour operators, travel agents have to use selected hotel pictures to design or list resorts on brochure, flyer or other PR material as authorized by resort.
11. Please note all rates committed to your company are confidential and should not be published at any time or disclosed to a third party for any reason or purpose including on-line agents.
12. Under no circumstance are the given contracted rates to be passed on/sub-contracted to any dot.com/travel websites/third party company/organization that will result in the sale of our rooms be made at rates lower than those established by our hotel as benchmark rates. The hotel reserves the right to terminate this agreement without any advance notice and proceed to halt all acceptance of bookings from your company if any violations are found to have originated from your end unless a separate contract has been drawn up just for such purpose. Any feature of our hotel on your official company site should be made with no indication/mention of rates/tariff other than those authorized by the hotel. The accordance of room allocation from our end to your end is made on the mutual agreed of the parties that such allotment shall be used strictly and exclusively by you for purpose of free-sales by your retail agents and with the required brochure feature as stipulated in clause 1. This "retail agent" definition does not include the above third party internet booking sites nor do any other organizations that could possibly present our rate lower than our given benchmark sell at that point of time.
13. The hotel reserves the right at any time by giving notice in writing to cancel this agreement should the company fail to fulfil these terms & conditions.
14. If for any reason beyond the Resort or Company's reasonable control, including but not limited to strikes; labor disputes; acts of God; fires; flood or other emergency conditions; any delay in necessary and essential repairs of the Resort, the Resort or the Company is unable to perform its obligations under this Agreement, such non-performance is excused and such party may terminate this Agreement without further liability or any nature, upon return of the Company's unused deposit. In no event shall Resort or Company be liable for consequential damages of any nature for any reason whatsoever.
15. Tax fluctuations: Should the Government either increase or decrease the percentage of tax collected on room and /or meal rates, or imposes additional taxes and levies, the hotel reserves the right to adjust the contract rates accordingly.
16. In the event of currency devaluation or appreciation of over 10%, we reserve the right to review the contractual rates.
17. Disputes: It is expressly agreed and declared that the proper law of the Agreement is the law of Vietnam and that any disputes, action or other matters arising hereunder shall be determined by the court in Kien Giang Province, Vietnam in accordance with the laws and procedures of Vietnam under any and all circumstances.

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void.

On behalf of:
FUSION RESORT PHU QUOC

Accepted by:

Mr. PEDRO MIGUEL OLIVEIRA NETO
General Manager
Date:

Date: